

26STCP00531 26STCP00531

County: los-angeles

Division: Civil Law and Motion

Department: 400

Hearing date: 2026-06-25

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Case Number: 26STCP00531 Hearing Date: June 25, 2026 Dept: 400

PETITION TO VACATE

The Court tenders the following

tentative ruling in the matter Nicholas The Sunshine State Hernandez v. Turo Inc., Los Angeles County Superior Court case number 26STCP00531, set for hearing on June 25, 2026. Nicholas The Sunshine State Hernandez (Petitioner) petitions that the Court vacate the arbitration award to Turo, Inc. (Respondent). The petition is denied.

A.

Legal Standard

Under Code of Civil Procedure

section 1285, "[a]ny party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award. The petition shall name as respondent all parties to the arbitration and may name as respondents any other persons bound by the arbitration award." "A petition under this chapter shall: (a) Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement; (b) Set forth the names of the arbitrator; and (c) Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any." (Code Civ. Proc. § 1285.4.)

A court must vacate an arbitration

award upon finding any of the following: "(1) The award was procured by corruption, fraud or other undue means. (2) There was corruption in any of the arbitrators. (3) The rights of the party were substantially prejudiced by misconduct of a neutral arbitrator. (4) The arbitrators exceeded their powers and the award cannot be corrected without affecting the merits of the decision

upon the controversy submitted. (5) The rights of the party were substantially prejudiced by the refusal of the arbitrators to postpone the hearing upon sufficient cause being shown therefor or by the refusal of the arbitrators to hear evidence material to the controversy or by other conduct of the arbitrators contrary to the provisions of this title." (Id., § 1286.2, subd. (a).)

B.

Discussion

As a threshold matter, Respondent contends that the petition is procedurally improper for having not been duly served. A petition to vacate an arbitration award must be served and filed "not later than 100 days after the date of the service of a signed copy of the award on the petitioner." (Code Civ. Proc., § 1288.) Courts may not vacate an arbitration award unless such a petition has been "duly served and filed." (Id., § 1286.4, subd. (a).) Because the arbitration agreement between the parties does not provide for a specific manner of service, service must be made "in the manner provided by law for the service of summons in an action." (Id., § 1290.4, subd. (b)(1).) But the petition must include "written notice of the time and place of the hearing" and other papers upon which the petition is based. (Id., § 1290.4, subd. (a).)

Here, Petitioner served the ADR-106 form on Respondent on February 5, 2026. (POS, April 6, 2026.) Petitioner did not serve any supporting documentation or give written notice of the time and place of the hearing at this time, as the ADR-106 did not include that information or any attachments. Thus, Petitioner did not properly serve Respondent under section 1290.4. Accordingly, the Court lacks jurisdiction to grant the petition.

This motion was initially heard on 4/6/26. At that time Petitioner stated that he was unable to upload supporting documents so the Court continued the hearing to 6/25/26. On 6/16/26 Petitioner filed hundreds of pages of materials he states support his position. But it appears these materials were not served on Respondent. There is a proof of service filed, but the portion stating who was served is left blank.

The Court des the motion on this additional ground.

In addition, Petitioner argues that

Respondent's arbitration award must be vacated pursuant to Code of Civil Procedure section 1286.2. Specifically, Petitioner states that the award was obtained by corruption, fraud, or other unfair means, the arbitrator was corrupt, the misconduct of the arbitrator prejudiced his rights, and that the arbitrator unfairly refused to postpone the hearing or hear useful evidence. Petitioner alleges that Respondent altered the arbitration clause prior to this arbitration, changing a provision that allowed for a choice between Fair Claims or AAA arbitration to mandating Fair Claims. (Ex. 10C.) Petitioner alleges that Fair Claims was being paid millions of dollars to exclusively handle Respondent's disputes, introducing bias. But Petitioner cites no evidence of such payments or bias. Petitioner also claims that Respondent canceled his access to their service a few days after he initiated arbitration proceedings, preventing him from obtaining evidence. However, even if the Court retained jurisdiction to entertain the petition, Petitioner has not presented sufficient evidence to meet his burden of demonstrating corruption, fraud, or unfair means.

Conclusion:

The Court denies
the petition.